

07 NCAC 04R .0202 is proposed for amendment as follows:

07 NCAC 04R .0202 INFORMATION NEEDED FOR REVIEW DEFINITIONS

~~Project proposals received for review by the Archaeology and Historic Preservation Section shall include:~~

- ~~(1) — a description of the exact project location, location;~~
- ~~(2) — a map clearly indicating this location;~~
- ~~(3) — the project area size in acreage;~~
- ~~(4) — a description of the action proposed, and~~
- ~~(5) — the applicant's name, address and telephone number.~~

~~Applicants may also receive a questionnaire requesting information on structures presently located in the project area and previous land use practices.~~

The following definitions apply to this Sub-Chapter unless otherwise indicated:

- (1) “Adverse Effect” is defined as in 36 C.F.R. 800.5(a)(1).
- (2) “Area of Potential Effects” is defined as in 36 C.F.R. 800.16(d).
- (3) “Effect” is defined as in 36 C.F.R. 800.16(i).
- (4) “Historic property” is defined as in 36 C.F.R. 800.16(l).
- (5) “Office of State Archaeology” (OSA) is a section of the Division of Historical Resources, North Carolina Department of Natural and Cultural Resources. The OSA protects archaeological sites in North Carolina. The OSA includes an Underwater Archaeology Branch.
- (6) “State Historic Preservation Office” (HPO) is a section of the Division of Historical Resources, North Carolina Department of Natural and Cultural Resources. The HPO is responsible for administering applicable historic preservation programs pursuant to State and federal law.
- (7) “State Historic Preservation Officer” (SHPO) is the Deputy Secretary, Office of Archives and History, North Carolina Department of Natural and Cultural Resources, and is further defined in 36 C.F.R. 800.16(v).
- (8) “Undertaking” means any project, activity, or program that can result in changes in the character or use of historic properties located in the area of potential effects. The project, activity, or program must be under the direct or indirect jurisdiction of a Federal or State agency, including those carried out by or on behalf of a Federal or State agency; those carried out with Federal or State financial assistance; and those requiring a Federal or State permit, license, or approval. Undertakings include new and continuing projects, activities, or programs and any of their elements, including changes to the project’s scope and location.

History Note: *Authority G.S. 121-8; 121-12(a); 121-23; 143B-62; 54 U.S.C. 302301, 302303, 306108; 36 C.F.R. 800.3-800.6, 800.16.*